

MOOT PREPOSITION

1. The Republic of Sindia is located in South East Asia and got its independence from the clutches of British Colonization. It is a densely populated country with a population of over 1.4 Billion people. Indraprastha is the National capital of Sindia. Sindia is the largest democracy of the world and has the lengthiest written constitution. Also the state owes certain responsibility towards the citizens. Sindia functioned as a virtual self-contained cultural arena, giving rise to distinctive tradition that was associated primarily with Hinduism. Sindia remains, till date, one of the world's most ethnically diverse country and is home to innumerable castes and tribes.
2. Mohd. Shoib, a young boy, aged 28 years old from the State of Habul, Kanistan got an opportunity to study B.Com. at Mussadi Lal Nehru University situated in Indraprastha, Sindia for the academic year 2009-12. Later he studied Law in the University for academic year of 2013-2016. Following his LL.B, he applied for LL.M again from Mussadi Lal Nehru University and is a final year student of the same in 2020. Shoib at present is still living in Sindia.
3. Islamic Republic of Kanistan is a populous nation of Northern Peninsula. Since Kanistan and Sindia got independence in 1947, Kanistan has been distinguished from its larger south-eastern neighbour by its overwhelmingly Muslim population (as opposed to the predominance of Hindus in Sindia). Kanistan has struggled throughout its existence to attain political stability and sustained social development.
4. The Republic of Kanistan shares a significant amount of history with the Republic of Sindia or it would be perfect to say as a matter of fact the Republic of Kanistan was once a part of Sindia and separated from it in the year 1947. Since then both the countries have a very conflicting and complex relationships in terms of trade, military, territorial, etc.
5. Shoib, being a law student and an aware social individual, he has opinions regarding the socio-legal problems of the nation and created a blog 'www.themanthan.com' on 20th May

2019. He wrote several articles on topics like Female Feticide, Social Issues, Economic Issues, Gender Discrimination, Child Marriage etc. On 14th February, 2020, he posted a very contentious and reality-based blog in relation to exploitation, harassment and discrimination done against Muslims because they are treated as minorities in Sindia. The title of the blog was “HERE DIED THE PREAMBLE OF THE SCINDIAN CONSTITUTION”.

The blog commented about several news & real time stories such as –

“A Muslim couple was accosted by two youths at a bus stop who assaulted the husband for not chanting ‘Ram-Ram’, disrobed the women and made obscene gestures.”

“A Muslim driver transporting chicken, was alleged to be transporting beef by a group of people and lynched midway to death.”

“Two students of the same batch, having similar education credentials and skills applied for a job in an organisation having vacancy of two. After the interview only one got selected and as per later research of the organization it was found that it did not have any Muslim employee.”

6. Shoib, in his blog, highly criticised this behaviour against Muslims and targeted Hinduism. He further contended that there was no substantial action has been taken by the police department of the nation and the governments in relation to these cases and questioned the very “SECULARITY” of the Republic of Sindia. As per Shoib people of Sindia has not only forgotten the real meaning of its Constitution but are also acting ignorant to crimes against Muslims. Feeling offended and helpless he rewrote the Preamble of the Constitution of Sindia by removing the word Secular from it which read as –

WE, THE PEOPLE OF SINDIA, having solemnly resolved to constitute Sindia into a SOVEREIGN SOCIALIST DEMOCRATIC REPUBLIC and to secure to all its citizens

JUSTICE, economic and political;

LIBERTY of belief, faith;

FRATERNITY assuring the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this 26th day of November 1949, HEREBY

ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

7. The blog went viral, merely in a week's time amongst all the well-known social media networks. Shoib's article received traffic which he never received since the inception of his blog and the content of this article resulted in massive controversies. Such controversies had a negative impact on Shoib's social life as he received regular threats and felt unsafe outside the university campus.
8. Shoib's blog disgruntled all the Muslims who were the sufferers of these acts of violence which ultimately resulted in National level communal riots and Rampage among people. The whole country was divided into two groups- One, who were supporters of Muslims of the country and asked for regulations and strict punishment against such kind of violence and others who were of the view that Shoib has injured the sanctity of the constitution by changing the preamble of India by falsifying the written text, making misleading & ambiguous statements targeting only a particular community or religion.
9. One major communal riot occurred in the North-Eastern Part of the National Capital Indraprastha, on February 23rd, 2020 in which a mass tried to destroy houses of Hindus and Hindu Temples leading to a clash between two communal groups which resulted in the death of 164 people and left 343 injured.
10. Seeing amid this unrest, in various regions of the country, one of the major region being the National Capital Region of Indraprastha, where Mr. Arnold Crump, President of the United States of America was present for a visit, the Executive Magistrate of the Metropolitan imposed emergency, by issuing a public order on 23rd February, 2020 under Section 144 of Criminal Procedure Code, 1973. Further an FIR was registered with the Indraprastha Police against Mohd. Shoib dated 24th February, 2020 under Section 124A of Indian Penal Code for the Seditious blog posted by him. On 26th February, 2020 after receiving a Court Order for the arrest of Shoib, the police arrived at the National University to make the arrest but Shoib was nowhere found in the university campus.

After speaking to some of Shoib's friends, the Indraprastha Police received information that due to criticism and unrest against him, Shoib has shifted to his uncle's house two days ago in Phulera village, Kattar Pradesh near to Luckdown City. Looking at the attendance registers of the Law School of the National University, the Police found that Shoib has not attended any of his classes since 22nd February, 2020. Not satisfied with the statements of his friends, the Police continued the search for considerable evidence in relation to his whereabouts. Latter Indraprastha Police then went on to search his Hostel Room¹. The Police entered the room by breaking the lock and it smelt like a butcher-house however it was completely clean. After a search, the police found 15 Liters of Whisky in the room lying near a dead body of a girl, naked and in a decomposed state. The body was sent for post-mortem.²

11. On the following day i.e. 23rd February, 2020, Inspector Mahabir Singh was appointed as the Investigation Officer for the case and the FIR was amended with addition of the charges under Section 300, 375 & 362 of Indian Penal Code. Later, Shoib was arrested from his uncle's house.
12. The case was initially heard by the Trial Court, the Hon'ble Trial Court held that Shoib is Guilty under Section 124A, 300, 362 & 375 of Indian Penal Code and under Sec 33 of the Delhi Excise Act, 2009.
13. Shoib after this filed an appeal in the High Court of Indraprastha, in which the Hon'ble High Court held him guilty and upheld the judgment pronounced by the Hon'ble Trial Court and dismissed the appeal. Now, Shoib has filed an appeal in the apex court i.e. The Supreme Court of India.

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¹ About the Hostel:- It is pertinent to note that no restriction was placed on boy's entering girls' hostel and vice-versa.

² The girl's body can't be identified throughout investigation and the police failed to establish any relationship between of the girl with Shoib except that the body of the girl was found in Shoib's Hostel Room.

IMPORTANT INSTRUCTIONS

Participants are required to consider the following statements prior analysing the moot problem and preparing arguments thereof –

1. That the given facts, attached exhibits and clarifications must solely be considered as the source of factual information, the participants must not make other assumption. However, they have absolute discretion to make their own issues which circumscribes the legal aspects given under this Moot Proposition.
2. That the laws of the Republic of Sindia are Pari Materia to laws of Republic of India.
3. That the City of Indraprastha follows and works on the similar principles and laws as that of National Capital Territory of Delhi.
4. That the Republic of Kanistan are Pari Materia laws as that of Islamic Republic of Pakistan.
5. That the Moot Court Competition and this Moot Proposition is based on a fictitious problem, whereby the characters & the incidents or the course of events in the moot court are completely imaginary and the same has no relation to any person living or dead or any post/present real-life incident. All materials, names, characters etc. in the problem are fictitious and do not intend to or attempt to hurt the feelings of any community or religion.

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EXHIBIT I

WITNESS TESTIMONIALS

Statement 1:

Name: Kadil Rehman Age: 29 Relation with Shoib: Friend

When did you last meet Mohd. Shoib?

On 22nd February, 2020- Me, Shoib, Hiba and Hasina were in canteen discussing about the exams which will be starting from the next week and later we all went to library and we sat there for another half an hour and issued some books for our exam. And after that we all went to our respective rooms in the hostel that was the last time, I saw Shoib.

What was the condition of Mohd. Shoib after the criticism and unrest against him? He was upset and he also mentioned that he will be leaving to his uncle's house on that day itself to get some peace so that he can prepare for exams.

Statement 2:

Name: Hiba Khan Age: 28 Relation with Shoib: Friend

When did you last meet Mohd. Shoib?

On 22nd February, 2020, Kadil, Shoib and Hasina were sitting in last corner of the canteen I joined them, we were chilling trying to make up Shoib's mood after the unrest and having food. And I remember Shoib was involved in a small argument with the canteen worker as he served us expired and stale food. But that was a petty issue and after that we all headed towards our rooms.

Did Shoib tell you about that he is going to his uncle's place?

No, Shoib did not inform me about this.

Statement 3:

Name: Hasina Qureshi Age: 27 Relation with Shoib: Friend

When did you last meet Mohd. Shoib?

On 22nd February, 2020:- Shoib called me in the morning, he seemed very upset, and asked me to meet him in the Garden. We had conversations for hours about all the things that are going on not only in the city but also the country and afterwards that we went to canteen Kadil joined us there. We were having food and chilling later Hiba also joined us and after that we went to library studied there for some time and went to respective rooms.

Did Shoib tell you about that he is going to his uncle's place?

No, I don't know anything of that sort.



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